

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
FAMILY LAW DIVISION**

In re: the Marriage of:

SARAH HANSON

Petitioner,

Case No.: 24-DR-1150

and

Division: D

CHRISTOPHER HANSON

Respondent.

_____/

RESPONDENT'S ANSWER TO
WIFE'S AMENDED PETITION FOR DISSOLUTION OF MARRIAGE WITH MINOR
CHILDREN AND FOR OTHER RELATED RELIEF
AND
COUNTERPETITION FOR DISSOLUTION OF MARRIAGE

ANSWER TO WIFE'S AMENDED PETITION FOR DISSOLUTION OF MARRIAGE

The Respondent, **CHRISTOPHER HANSON**, hereby responds to the Petitioner's Amended Petition for Dissolution of Marriage and states in response to each correspondingly numbered paragraph:

1. Admitted.
2. Admitted.
3. Admitted.
4. Admitted.
5. Denied that the Respondent did not file an answer to the Petitioner's initial Petition and affirmatively averred that the initial filing was a Joint Petition for Dissolution of Marriage with Dependent/Minor Children on January 26, 2024.
6. Admitted.

7. Admitted.
8. Admitted.
9. Admitted.
10. Admitted.
11. Admitted.
12. Admitted – although Respondent objects to enforcement of it as Petitioner specifically withheld access and balance information about her finances beyond insisting that she was unable to contribute to any household expenses beyond some groceries and paying an occasional bill.
13. Admitted that it is in the best interests of the children for the Parties to have shared parental responsibility based on currently available information. The remainder of the paragraph is denied. It is specifically denied that the Petitioner should have ultimate decision-making authority.
14. Denied.
15. Denied.
16. Denied.
17. Admitted.
18. Denied.
19. Denied.
20. Denied – Marital separation agreement is not enforceable as to Husband as Wife provided intentionally misleading information about her finances before entering into the Marital separation agreement. Information Wife already produced in these proceedings is inconsistent with Wife's representations prior to entry into the agreement, even while Wife and her counsel continue to obstruct and delay other relevant discovery. If, in order to move discovery forward, it is necessary to throw out the entire separation agreement even though Husband provided proper disclosure to Wife before

entry, Husband still insists that the agreement is unenforceable because of misleading information and the lack of any meaningful disclosure from Wife.

21. Denied. As Husband is currently unable to work due to various factors including health problems and a pending decision over a lumbar fusion surgery, Wife should be the sole or at least primary payer. Furthermore, marital separation agreement is not enforceable as to Husband as Wife never provided proper disclosures as reflected in the language of the document. The only financial information provided by wife before the marital separation agreement appears to have been intentionally misleading based on information Wife produced in these proceedings.
22. Denied. As Husband is currently unable to work due to various health problems including a pending decision on a lumbar fusion surgery, Wife should be the sole or at least primary payer until some medical determinations are made and/or a return to work is possible. Wife is also Furthermore, marital separation agreement is not enforceable as to Husband as Wife provided intentionally misleading information about her finances before entering into the Marital separation agreement. Information Wife since produced is inconsistent with Wife's representations made prior to entering into the separation agreement.
23. Denied.
24. Admitted.
25. Denied. Marital separation agreement is not enforceable as to Husband as Wife provided intentionally misleading information about her finances before entering into the Martial separation agreement. Information Wife already produced in these proceedings is inconsistent with Wife's representations on her finances prior to entry into the separation agreement, even while Wife and her counsel continue to obstruct and delay other relevant

discovery. Husband is not challenging the pre-marital agreement based on currently available information.

26. Admitted on permanent alimony, but Husband may seek temporary alimony depending on how long the obstructive efforts to discovery continue.

27. Denied. There is no challenge to the pre-marital agreement. Husband objects specifically to the post-marital agreement based on a lack of proper disclosure and evidence that already demonstrates an intent to mislead Husband about assets at the time of entering into the post-marital agreement.

COUNTER-PETITION FOR DISSOLUTION OF MARRIAGE

The Respondent, **CHRISTOPHER HANSON**, by and through his undersigned counsel, files this, his Counter-Petition for Dissolution of Marriage and states as follows:

1. **ACTION FOR DISSOLUTION OF MARRIAGE.** This is an action for dissolution of marriage pursuant to Chapter 61, Florida Statutes.
2. **RESIDENCY.** The Parties have resided in Florida for more than six (6) months prior to filing this Counterpetition for Dissolution of Marriage.
3. **VENUE.** Venue is proper in Hillsborough County because this is where the intact marriage of these Parties was last evidenced by a continuing union and the intent to remain married to each other.
4. **MILITARY SERVICE DECLARATION.** Both Parties are over the age of eighteen (18). Neither Party is, nor has been within a thirty (30) day period immediately preceding the filing of this action, an active member of the military services of the United States.
5. **MARRIAGE.** The Parties were married to each other on October 28, 2016.
6. **GROUND FOR DISSOLUTION.** The marriage of the Parties is irretrievably broken.
7. **MINOR CHILDREN.** There are two minor children born of the Parties' marriage; initials H.G.H., a daughter born on October 28, 2017, and initials H.G.H., a

daughter born on July 10, 2019. The Parties are not in the process of adopting and no further children are anticipated.

8. **PARENTING PLAN.** If the Parties cannot reach an agreement to establish a Parenting Plan, the Court should establish a Parenting Plan that is in the best interests of the minor children and includes the following:

a. **Parental Responsibility.** The Parties should have shared parental responsibility over the minor children.

b. **Timesharing.** The Court should establish a timesharing schedule in accordance with the best interests of the minor children. While Husband continues to hope that the parties will resolve the discovery issues and establish a 50/50 timesharing and successful coparenting relationship, Wife's actions to avoid producing discovery in this matter raise some concerns on whether equal timesharing is in the best interests of the children. Wife suddenly and without explanation abandoned several years of constant agreement between the parties on 50/50 custody when she filed the Amended petition for dissolution on October 2, 2024. Husband reserves the right to amend and seek primary or even full custody of the children depending on the impact this ongoing obstruction has on the children and what additional information comes out in discovery.

9. **CHILD SUPPORT.** The Court should establish an amount of child support in accordance with Section 61.30, Florida Statutes. Both Parties should be required to pay their pro rata share of any reasonable expenses related to the children, including, but not limited to, uncovered medical expenses, extracurricular expenses, and other miscellaneous uncovered child-related expenses.

10. **EQUITABLE DISTRIBUTION.** The Parties have earned significant income, acquired certain assets and incurred certain liabilities during their marriage. The Court should allow for broad discovery in terms of Mrs. Hanson's finances due to her ongoing refusal to share information about her finances going back to the time of marriage, during which Petitioner never put a dime into the joint account respondent set up days after the

wedding. Nevertheless, petitioner still frequently paid the few household bills she did pay, out of the joint account funded entirely by the Respondent, all while keeping her paychecks in accounts she insisted on keeping entirely separate. The parties and then the Court should identify, value, and distribute these marital assets and liabilities, once fully investigated and documented, between the Parties with due regard for the factors set forth in Fla. Stat. § 61.075(1). The Court should further identify and set apart to each Party his or her nonmarital assets and liabilities.

11. **ATTORNEY'S FEES, COSTS, AND SUIT MONEY.** The Respondent has retained the firm of Harris, Hunt & Derr, P.A. to represent him in this cause, and has agreed to pay the firm reasonable fees and costs for their services. The Respondent has the need and the Petitioner has the ability to pay these fees and costs on a temporary basis, and the Respondent requests that the Court order the Petitioner to pay these fees, costs, and suit monies consistent with Florida Statutes Section 61.16. Should the Court agree that the delay in meeting a stipulated deadline for 4 months and other legal action on behalf of wife is unreasonable and unnecessary, the Respondent requests that this Court consider Section 61.16, Florida Statutes, Rosen v. Rosen, 696 So. 2d 697 (Fla. 2d DCA 1997); Dralus v. Dralus, 627 So. 2d 505 (Fla. 2d DCA 1993); Wrona v. Wrona, 592 So. 2d 694 (Fla. 2d DCA 1991), Diaz v. Diaz, 826 So. 2d 229 (Fla. 2002), and their progeny in determining the Petitioner's responsibility for the resulting fees and costs.

WHEREFORE, the Respondent respectfully requests that this Court grant the following relief:

- A. Take jurisdiction over the subject matter and the Parties hereto;
- B. Find that the Parties' marriage is irretrievably broken and enter a Final Judgment dissolving the marriage;
- C. Ordering a Parenting Plan be put in place, granting the Parties equal timesharing with the children and shared parental responsibility;
- D. Order Child Support be awarded, in accordance with Florida Statutes

Section 61.30;

E. Identify and set apart to each Party his or her nonmarital assets and liabilities;

F. Allow for the necessary discovery into Mrs. Hanson's finances in order to fully identify and value the Parties' marital assets and liabilities and effect an equitable distribution of these assets and liabilities between the Parties with due regard for Fla. Stat. § 61.075 and any relevant circumstances in terms of the parties actions in relation to this subject matter, allowing for broad discovery in light of Mrs. Hanson refusal to allow for any open conversation about her income during or now after the marriage, without court intervention;

G. Award the Respondent temporary and when appropriate future attorney's fees;

H. Take into consideration any unreasonable legal action by the Petitioner in determining the Parties' responsibilities for fees and costs; and

I. Provide for such other and further relief as this Court deems fair and appropriate under the circumstances herein.

VERIFICATION

Under penalties of perjury, I declare that I have read the foregoing Answer and Counter Petition and that the facts stated in it are true to the best of my knowledge and belief.

12-16-24

Date

Chris Hanson

Christopher Hanson, Respondent

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished to Scott Paul Davis, Esq., via email to: scott@davislawtampa.com; and service@davislawtampa.com; and all others designated on e-service list on this 16th day of December, 2024.

/s/ *Chris Hanson*

Chris Hanson

Primary E-Mail: cahanson77@yahoo.com